

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: March 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 5	21CV387882	Jellyfish Seafood Bar, LLC vs Frank Vasquez et al	Motion to Compel Verified Responses to Form Interrogatories, Set Number One. Plaintiff's unopposed Motion to Compel Verified Responses to Form Interrogatories, Set Number One is GRANTED. Failure to oppose is deemed a concession. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Defendant is ordered to provide verified responses with 15 days of service of the final order. Plaintiff's request for \$830.00 in sanctions is GRANTED. (Code Civ. Proc. §§2023.010, 2023.030, 2030.290, 2030.010, 2030.300.) Such payment must be issued within 15 days of entry of the final order. Plaintiff to submit the final order within 10 days of the hearing.
LINE 6	24CV447929	City of Milpitas vs Emiliano Figueroa	Respondent's Request for Hearing (Pen. Code § 18400, et. seq.) Parties to appear to assess status, and if possible, for hearing. The Court file does not reflect that notice of the March 12, 2025 hearing in Department 13 has been given to Respondent or to the District Attorney. (See Pen. Code § 18410, subd. (b).)

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LINE #	CASE #	CASE TITLE	RULING
LINE 7	24CV450079	HERITAGE BANK OF COMMERCE vs H2-MDZ LLC	Motion for Entry of Default Judgement The Court notes that under common practice, submitted default judgment packets are reviewed and decided on the papers without a calendared motion. Nevertheless, Plaintiff's "Application for Default Court Judgment" is GRANTED. The Court will sign the previously submitted JD-100.
LINE 8	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Wade's Inc. Off calendar.
LINE 9	24CV453875	PNC Bank, National Association, vs WADE'S INC. et al	Hearing: Writ of Possession to Byron C. Wade, and individual Off calendar.

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